W012686-050726 - California Public Records Request

Message History (16)

On 10/14/2026 2:33:02 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:
RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

The City received the following records request from you on May 07, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

This request is a re-filing of W012297-030826, which was closed without a statutory basis into W012462-040226 on 5/6/2026. W012462-040226 has been withdrawn. This request seeks a direct response.

This request was originally filed on March 8, 2026. I ask that the Department treat this re-filing with corresponding urgency given the time already elapsed. This re-filing includes scope clarifications — particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.

3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access

beyond California public agencies.

4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
Note on search scope

This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive:

- Camera-sharing notifications ("Camera Access Request from [Agency]," "[Agency] shared Flock cameras with you," or equivalent)
- Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network
- SMPD's transparency portal data or sharing-list configurations
Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

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Anticipated exemption issues

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Records held by Flock Safety. MSA § 4.1 establishes SMPD's ownership of data processed by Flock on SMPD's behalf. Under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, records held by Flock as SMPD's contractor are SMPD records regardless of physical location. SMPD has already produced records of this type from Flock under W012570-041926.

Segregability and denial requirements

If any portion of any item is withheld, please produce all reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)) and identify each withheld record with a specific exemption citation per § 7922.540. For item 4, if the responsive record is withheld as attorney-client privileged, please confirm that such an analysis exists and identify it by date and general subject matter.

If no records exist for any individual item, please respond to that item separately.

As you were informed on 5/14/26, a legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that a portion of the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

Your request for documents related to legal review has been denied. California Government Code § 7927.705 exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

As you are aware, the remainder of your request generated a lengthy email query requiring staff review. There may be responsive records to this request however due to the large volume of records we are releasing records on a rolling basis. A good faith and diligent search yielded no records responsive to your request.

We will further respond to your request with updates no later than 10/28/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 9/30/2026 8:15:04 AM, San Mateo Public Records Center wrote:

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Body:
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Purpose

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Background

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4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

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communications pursuant to California Evidence Code section 954.

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Juliana Santiago
Management Analyst I
Police
(650) 522-7664

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Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 9/2/2026 6:00:00 PM, San Mateo Public Records Center wrote:

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Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 8/19/2026 4:44:00 PM, San Mateo Public Records Center wrote:

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This request was originally filed on March 8, 2026. I ask that the Department treat this re-filing with corresponding urgency given the time already elapsed. This re-filing includes scope clarifications — particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is

"reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.

3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.

4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
Note on search scope

This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive:

- Camera-sharing notifications ("Camera Access Request from [Agency]," "[Agency] shared Flock cameras with you," or equivalent)
- Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network
- SMPD's transparency portal data or sharing-list configurations
Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

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Anticipated exemption issues

Civil Code § 1798.90.55(b). The records requested describe what Flock did with SMPD's data — they are

vendor contract administration records, not ALPR information as defined in § 1798.90.5(c). § 1798.90.55(b) restricts SMPD from sharing ALPR information outward; it does not exempt records documenting a vendor's own disclosures.

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Segregability and denial requirements

If any portion of any item is withheld, please produce all reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)) and identify each withheld record with a specific exemption citation per § 7922.540. For item 4, if the responsive record is withheld as attorney-client privileged, please confirm that such an analysis exists and identify it by date and general subject matter.

As you were informed on 5/14/26, a legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that a portion of the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

Your request for documents related to legal review has been denied. California Government Code § 7927.705 exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

As you are aware, the remainder of your request generated a lengthy email query requiring staff review. There may be responsive records to this request however due to the large volume of records we are releasing records on a rolling basis. A good faith and diligent search yielded no records responsive to your request. If any responsive records are located, we will further respond to your request with updates no later than 8/19/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

> On 7/22/2026 11:18:00 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:
RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

The City received the following records request from you on May 07, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

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Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.

3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.

4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent

with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
Note on search scope

This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive:

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Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails.

Anticipated exemption issues

Civil Code § 1798.90.55(b). The records requested describe what Flock did with SMPD's data — they are vendor contract administration records, not ALPR information as defined in § 1798.90.5(c). § 1798.90.55(b) restricts SMPD from sharing ALPR information outward; it does not exempt records documenting a vendor's own disclosures.

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Segregability and denial requirements

If any portion of any item is withheld, please produce all reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)) and identify each withheld record with a specific exemption citation per § 7922.540. For

item 4, if the responsive record is withheld as attorney-client privileged, please confirm that such an analysis exists and identify it by date and general subject matter.

If no records exist for any individual item, please respond to that item separately.

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As you are aware, the remainder of your request generated a lengthy email query requiring staff review. There may be responsive records to this request however due to the large volume of records we are releasing records on a rolling basis. A good faith and diligent search yielded no records responsive to your request. If any responsive records are located, we will further respond to your request with updates no later than 8/5/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 7/8/2026 11:34:01 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:
RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

The City received the following records request from you on May 07, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

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particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

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Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

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3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.

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Note on search scope

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Anticipated exemption issues

Civil Code § 1798.90.55(b). The records requested describe what Flock did with SMPD's data — they are vendor contract administration records, not ALPR information as defined in § 1798.90.5(c). § 1798.90.55(b) restricts SMPD from sharing ALPR information outward; it does not exempt records documenting a vendor's own disclosures.

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If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 6/24/2026 11:30:23 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:

Brian,

As you were informed on 5/14/26, a legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that a portion of the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

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Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 6/10/2026 4:28:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:

RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

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Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

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Purpose

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Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/28/2026 12:55:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:
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Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/21/2026 1:48:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:
RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

The City received the following comment from you on May 14, 2026.
Ms. Santiago, Thank you for the May 14, 2026 response to W012686-050726. I have four clarifying questions. 1. Search scope. As you are aware, the request included an explicit scope note identifying records that are not responsive: "This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 – not sharing decisions made by SMPD. The following are not responsive: Camera-sharing notifications ('Camera Access Request from [Agency],' '[Agency] shared Flock cameras with you,' or equivalent); Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network; SMPD's transparency portal data or sharing-list configurations." The response references a search producing 211,872 documents. Please identify the search terms and corpus that produced that result – specifically, whether the search was limited to emails received from @flocksafety.com or @mail.flocksafety.com addresses. A corpus of that volume, drawn from those domains, would consist overwhelmingly of records the scope note identifies as non-responsive. 2. Items 2 and 5. The request stated: "Items 2 and 4 seek internal SMPD records – memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus." And: "Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails." Please confirm whether items 2 and 5 are being processed separately from the email search, and if so, on what timeline. Neither item can be answered by an inbound email corpus. 3. Per-item determination. Gov. Code § 7922.535(a) requires the agency to determine, within 10 days of receipt, whether the request "in whole or in part" seeks copies of disclosable public records, and to notify the requester of that determination. The May 14 response makes a determination on item 4 (denied under privilege). For items 1, 2, 3, and 5, the response states that a search produced 211,872 documents "requiring evaluation" – which is a description of work still in progress, not a determination. As of May 14, 2026 (day 10 from receipt), the Department has not determined whether items 1, 2, 3, or 5 seek disclosable records. Please provide that determination for each item individually. 4. Timeliness and justification for delay. As you are aware, the 10-day determination period under § 7922.535(a) ran from May 7, 2026 (date of receipt) through May 17, 2026. The May 14 response does not make a determination on items 1, 2, 3, or 5, and sets a May 28 follow-up date – 11 days after the determination deadline. Gov. Code § 7922.535(b) permits an extension of up to 14 days beyond the 10-day period upon written notice identifying the specific unusual circumstance and the date on which a determination will be made. The May 14 response does not cite § 7922.535(b), does not identify an unusual circumstance, and does not state when a determination (as distinct from a production) will be made. Please identify: (a) the Department's justification for not making a determination on items 1, 2, 3, and 5 within the 10-day period; (b) whether the Department is invoking § 7922.535(b); and if so, (c) the specific unusual circumstance and the date on which a determination will be made. If the Department's unusual-circumstance justification is the volume of the email search results: Gov. Code § 7922.535(b)(3) permits an extension where there is a need to examine a "voluminous amount of separate and distinct records that are demanded." That provision refers to responsive records demanded by the request – not a corpus that includes records the scope note expressly identified as non-responsive. The 211,872-document figure appears to reflect a search not limited to responsive records. Volume of non-responsive records is not a valid basis for an extension under § 7922.535(b). Please identify the number of records the Department has determined are actually responsive to the items as scoped. Thank you for your time. Brian C

The Department is aware of the scope you identified in your request under #W012686-050726. If responsive records exist, notification will come from a Flock Safety address.

As you were notified in #W012597-042226, records pertaining to search methodology are exempted under California Government Code section 7927.705 which exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

Both in and outboxes are searched and it is not limited to inbound correspondence. If there are responsive records to your request, they will be located in this review.

If responsive records are located, they will be provided to you on a rolling basis. This is identical to the process

being completed additional rolling productions for you:

- W012320-031126
- W012373-032026
- W012459-040226
- W012541-041426

As previously noted for #W012596-042226 and #W012597-042226, the City's system does not categorize or organize records into discrete batches based on the specific criteria outlined in a request. Instead, records are processed and uploaded in a non-sequential, system-generated order.

Due to this functionality, responsive records are being reviewed and produced in bulk as they become available, rather than grouped according to the categories identified in your request. As a result, the City is unable to identify or designate batches as corresponding to specific categories.

The City affirms that it is making a good faith and diligent effort to process and respond to your request in accordance with the California Public Records Act. This includes conducting a reasonable and thorough search for responsive records, reviewing records for applicable exemptions, and producing non-exempt records on a rolling basis as they become available, consistent with statutory requirements and practical limitations.

At this time, the City cannot yet state the final number of records determined to be responsive because the review process is ongoing.

If you have any questions, please reply to this message.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/14/2026 8:22:48 PM, Brian C wrote:

Ms. Santiago,

Thank you for the May 14, 2026 response to W012686-050726. I have four clarifying questions.

1. Search scope. As you are aware, the request included an explicit scope note identifying records that are not responsive: "This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive: Camera-sharing notifications ('Camera Access Request from [Agency],' '[Agency] shared Flock cameras with you,' or equivalent); Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network; SMPD's transparency portal data or sharing-list configurations." The response references a search producing 211,872 documents. Please identify the search terms and corpus that produced that result — specifically, whether the search was

limited to emails received from @flocksafety.com or @mail.flocksafety.com addresses. A corpus of that volume, drawn from those domains, would consist overwhelmingly of records the scope note identifies as non-responsive.

2. Items 2 and 5. The request stated: "Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus." And: "Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails." Please confirm whether items 2 and 5 are being processed separately from the email search, and if so, on what timeline. Neither item can be answered by an inbound email corpus.

3. Per-item determination. Gov. Code § 7922.535(a) requires the agency to determine, within 10 days of receipt, whether the request "in whole or in part" seeks copies of disclosable public records, and to notify the requester of that determination. The May 14 response makes a determination on item 4 (denied under privilege). For items 1, 2, 3, and 5, the response states that a search produced 211,872 documents "requiring evaluation" — which is a description of work still in progress, not a determination. As of May 14, 2026 (day 10 from receipt), the Department has not determined whether items 1, 2, 3, or 5 seek disclosable records. Please provide that determination for each item individually.

4. Timeliness and justification for delay. As you are aware, the 10-day determination period under § 7922.535(a) ran from May 7, 2026 (date of receipt) through May 17, 2026. The May 14 response does not make a determination on items 1, 2, 3, or 5, and sets a May 28 follow-up date — 11 days after the determination deadline. Gov. Code § 7922.535(b) permits an extension of up to 14 days beyond the 10-day period upon written notice identifying the specific unusual circumstance and the date on which a determination will be made. The May 14 response does not cite § 7922.535(b), does not identify an unusual circumstance, and does not state when a determination (as distinct from a production) will be made. Please identify: (a) the Department's justification for not making a determination on items 1, 2, 3, and 5 within the 10-day period; (b) whether the Department is invoking § 7922.535(b); and if so, (c) the specific unusual circumstance and the date on which a determination will be made.

If the Department's unusual-circumstance justification is the volume of the email search results: Gov. Code § 7922.535(b)(3) permits an extension where there is a need to examine a "voluminous amount of separate and distinct records that are demanded." That provision refers to responsive records demanded by the request — not a corpus that includes records the scope note expressly identified as non-responsive. The 211,872-document figure appears to reflect a search not limited to responsive records. Volume of non-responsive records is not a valid basis for an extension under § 7922.535(b). Please identify the number of records the Department has determined are actually responsive to the items as scoped.

Thank you for your time.

Brian C

On 5/14/2026 5:31:34 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012686-050726
Body:

RE: PUBLIC RECORDS REQUEST of May 07, 2026, **Reference # W012686-050726**

Dear Brian C,

The City received the following records request from you on May 07, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

This request is a re-filing of W012297-030826, which was closed without a statutory basis into W012462-040226 on 5/6/2026. W012462-040226 has been withdrawn. This request seeks a direct response.

This request was originally filed on March 8, 2026. I ask that the Department treat this re-filing with corresponding urgency given the time already elapsed. This re-filing includes scope clarifications — particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.

3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.

4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
Note on search scope

This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive:

- Camera-sharing notifications ("Camera Access Request from [Agency]," "[Agency] shared Flock cameras with you," or equivalent)
- Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network
- SMPD's transparency portal data or sharing-list configurations
Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails.

Anticipated exemption issues

Civil Code § 1798.90.55(b). The records requested describe what Flock did with SMPD's data — they are vendor contract administration records, not ALPR information as defined in § 1798.90.5(c). § 1798.90.55(b) restricts SMPD from sharing ALPR information outward; it does not exempt records documenting a vendor's own disclosures.

Gov. Code § 7923.600. These are not investigation records. They document whether and how a contractor exercised its contractual authority. They are not files compiled in connection with any particular investigation.

Records held by Flock Safety. MSA § 4.1 establishes SMPD's ownership of data processed by Flock on SMPD's behalf. Under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, records held by Flock as SMPD's contractor are SMPD records regardless of physical location. SMPD has already produced records of this type from Flock under W012570-041926.

Segregability and denial requirements

If any portion of any item is withheld, please produce all reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)) and identify each withheld record with a specific exemption citation per § 7922.540. For item 4, if the responsive record is withheld as attorney-client privileged, please confirm that such an analysis exists and identify it by date and general subject matter.

If no records exist for any individual item, please respond to that item separately.

We are reaching out to inform you that a legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that a portion of the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

Your request for documents related to legal review has been denied. California Government Code § 7927.705 exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

The remainder of your request generated a lengthy email query requiring staff review. This search produced 211,872 documents requiring evaluation. Staff will provide responsive records on a rolling production basis.

We will further respond to your request with updates no later than 05/28/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/7/2026 1:00:34 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/7/2026 and given the reference number **W012686-050726** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.**

This request is a re-filing of W012297-030826, which was closed without a statutory basis into W012462-040226 on 5/6/2026. W012462-040226 has been withdrawn. This request seeks a direct response.

This request was originally filed on March 8, 2026. I ask that the Department treat this re-filing with corresponding urgency given the time already elapsed. This re-filing includes scope clarifications — particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

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Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.

2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.

3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.

4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.

5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.

Note on search scope

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Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails.

Anticipated exemption issues

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If no records exist for any individual item, please respond to that item separately.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 5/7/2026 1:00:30 AM, Brian C wrote:

Request Created on Public Portal